

GREENROOT v WEBSTER

25CV48032

PLAINTIFF'S MOTIONS 1) TO STRIKE CROSS-COMPLAINT; 2) FOR LEAVE TO FILE THIRD AMENDED VERIFIED COMPLAINT; and 3) FOR ORDER TO PRESERVE AND PRODUCE ELECTRONIC COMMUNICATIONS

This case involves a contract dispute concerning real property brought by Lorna Greenroot ("Plaintiff") against Pennelope Webster ("Webster.") Now before the Court are three separate motions filed by Plaintiff: 1) Motion to Strike Cross-Complaint; 2) Motion for Leave to File Third Amended Complaint ("TAC"); and 3) Motion to Preserve Evidence. As the motions regard the same set of facts and procedural history, the Court will consider all three together herein. Webster opposes the motions.

Plaintiff filed amended notices which included the required language set forth in Local Rule 3.3.7.

I. Background

Plaintiff filed her original complaint on April 30, 2025, against Webster, alleging causes of action for: 1) quiet title, 2) breach of contract, and 3) unjust enrichment. Before Defendant filed an Answer, Plaintiff filed a First Amended Complaint ("FAC") against Webster which removed the cause of action for unjust enrichment.

On May 20, 2025, Webster filed a Cross-Complaint for 1) breach of lease agreement, 2) breach of lease to own agreement, 3) declaratory relief, 4) slander of title, 5) elder abuse, and 6) ejectment.

On May 22, 2025, Plaintiff sought leave to file a Second Amended Complaint against Webster in order to clarify her own theories of relief and rebut Webster's allegations in the cross-complaint. Webster had offered to stipulate to this amendment but Plaintiff did not respond to said offer. (Defendant's notice of non-opposition.)

This motion was denied as moot because on May 30, 2025, Plaintiff filed the instant motion for leave to file her TAC. Plaintiff seeks to add Randy Webster as a new defendant, as well as to add causes of action for fraud, conspiracy, of title, and intentional infliction of emotional distress.

II. Legal Standard and Discussion

A. Motion to Amend

Leave to amend is permitted under Code of Civil Procedure section 473, subdivision (a). California courts have a “ ‘policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.’ ” (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158 [citations omitted].) The “policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428 [citation omitted].) Further, “ ‘leave to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff’s claim is clear, but under substantive law, no liability exists and no amendment would change the result.’ ” (*Id.* [citation omitted].)

A motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires a supporting declaration to set forth explicitly what allegations are to be added and where, and explicitly stating what new evidence was discovered warranting the amendment and why the amendment was not made earlier. The motion must also include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Cal. Rules of Court, rule 3.1324, subds. (a), (b).) Plaintiff, who is representing herself, has substantially complied with these requirements.

Plaintiff seeks leave to amend her complaint for the third time in order to add a new defendant and to add multiple new causes of action. Webster opposes the motion on the grounds that Plaintiff had already made several motions to amend, despite Webster agreeing to stipulate to the SAC, and that the added causes of action are senseless and not well-pled.

At this point, the Court does not intend to engage in analyzing the TAC as if it were on demurrer. Plaintiff has alleged that she has recently been made aware of new facts and circumstances which have led to her amending the complaint. The matter is only newly filed, no discovery appears to have taken place, and aside from having to respond to multiple motions, Webster does not allege any real prejudice resulting from this amendment.

The Court cautions Plaintiff, however, that excessive motion filing (particularly when opposing counsel is willing to stipulate to amendments) is not well-regarded by the Court.

Thus, Plaintiff's **motion for leave to file a third amended complaint is GRANTED.**

B. Motion to Strike

A motion to strike lies either to strike: (1) any "irrelevant, false or improper matter inserted in any pleading"; or (2) any pleading or part thereof "not drawn or filed in conformity with the laws of this state, a court rule or order of court." (CCP § 436.) A motion to strike may also be used to strike allegations related to an improper request for relief. (*Saberi v. Bakhtiari* (1985) 169 Cal.App.3d 509, 517.) A motion to strike can be used to attack the entire pleading, or any part thereof—i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

When bringing a motion to strike, the moving party is obligated to attempt to meet and confer with the opposing side prior to bringing the motion. (Code Civ. Proc. § 435.5(a)(1).) The moving party must also file a declaration setting forth their attempts at meet and confer. (*Id.* sub (a)(3).) However, the failure to do so is not grounds for granting or denying the motion. (*Id.* sub (a)(4).)

Plaintiff moves to strike the cross-complaint on the following grounds: 1) the cross-complaint is not verified, 2) allegations are conclusory, prejudicial, and legally insufficient, 3) cross-complaint contradicts prior sworn testimony and 4) cross-complaint names third parties without any legal basis.

In opposition, Webster argues that the motion is deficient for failure to comply with Local Rule 3.3.7, failure to meet and confer, and for substantive reasons. Plaintiff filed an amended notice with the requisite local rules language and as noted above, the mere failure to engage in a meet and confer process is insufficient grounds to deny the motion.

Webster first opposes the motion on the grounds that none of the causes of action in the cross-complaint require verification. (Opp. p. 3, citing Weil & Brown, Civ. Proc. Before Trial 6:310.) Plaintiff did not file a reply and did not provide any legal authority requiring that this particular cross-complaint needed to be verified.

Second, Webster argues that Plaintiff's unsubstantiated statement that the cross-complaint contains conclusory or legally insufficient claims is itself insufficient. Plaintiff does not identify, with any specificity whatsoever, which allegations in the cross-

complaint are problematic. For the same reason, Webster argues that the Plaintiff's argument that the cross-complaint contains allegations that contradict prior testimony is meritless. First, Plaintiff does not specify which allegations are contradicted. However, more importantly, when reviewing a motion to strike, the Court does not look beyond the face of the pleadings. (*CPF Agency Corp. v. R&S Towing* (2005) 132 Cal.App.4th 1014, 1032.)

Finally, Webster contends – and the Court agrees – that the Plaintiff's contention that the cross-complaint improperly adds a new party is meritless. Plaintiff has not provided any legal authority that would suggest she has standing to argue the merits of whether another person should be added as a co-cross-defendant.

For the foregoing reasons, Plaintiff's **Motion to Strike is DENIED**.

C. Motion to Preserve Evidence

Plaintiff moves for an order requiring Randy Webster to preserve evidence in this case. Randy Webster is not a party to this action and the Court has no jurisdiction over him to make any such order.

However, both parties are admonished that they are not to destroy any evidence relevant to this matter. Any ultimate evidence that a party (or associated person) destroyed evidence is likely to be met with sanctions, likely of an evidentiary nature.

Based on the foregoing, plaintiff's **Motion to Preserve Evidence is DENIED**, without prejudice to renew if the Court at some point obtains jurisdiction over Randy Webster,

III. Conclusion

Plaintiff's motion for leave to file a Third Amended Complaint is **GRANTED**. Plaintiff's motion to strike the cross-complaint is **DENIED**. Plaintiff's motion to preserve evidence is **DENIED**.

Plaintiff is admonished to review the local rules of court before any future filings, to comply with all meet and confer requirements in the future, and to avoid unnecessary motion practice.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

FARIDI v CARLSON

25CV48053

PLAINTIFF'S MOTION TO SET ASIDE TRUSTEE SALE

Plaintiff Tariq Jamil Faridi ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendant Steve Carlson ("Defendant".) Now before the Court is Plaintiff's motion to set aside trustee sale.

The motion is deficient for multiple reasons. First, it does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3 3 7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3 3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.